

26STLC00586 26STLC00586

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 26STLC00586 Hearing Date: August 27, 2026 Dept: 26

TENTATIVE RULING:

Petitioner Maria Gutierrez's

Petitions to Approve Compromise of Disputed Claim on behalf of Minor Merida Bucio and Sahara Bucio are denied.

Analysis:

Minor Plaintiffs Merida Bucio and

Sahara Bucio ("Claimants"), by and through Plaintiff Maria Gutierrez

("Petitioner"), filed the instant action for motor vehicle negligence against

Defendants Susan Zurita and Norma Carrillo ("Defendants") on January 28, 2026.

On March 23, 2026, Petitioner filed

Petitions for Approval of Compromise of Claim or Action or Disposition of

Proceeds of Judgment for Minor or Person with a Disability. The Petitions were set for hearing on June 11, 2026, then continued at Petitioner's request.

(Minute Order, 03/30/26.) At the hearing on June 23, 2026, the Court continued the Petitions again to allow for supplemental papers to be filed. (Minute Order, 06/23/26.)

On June 30, 2026, Petitioner filed

declarations regarding Claimants' medical treatment and recovery, as well as

Applications for Appointment of Guardian Ad Litem. The Applications for

Appointment of Guardian Ad Litem were rejected by the Court on July 16, 2026,

but Petitioner filed new ones on July 30, 2026. Petitioner also filed orders

with respect to the Petitions for Approval of Compromise and a Notice of

Continued Hearing on July 1 and 2, 2026, respectively.

At the next hearing on August 13, 2026, the Court again continued the hearing and ordered Petitioner to file the Declaration of Maria Gutierrez in Support of Sahara Bucios, as well as revised applications for Appointment of Guardian Ad Litem, no later than five days before the new hearing date. (Minute Order, 08/13/26.) Petitioner filed the Declaration of Maria Gutierrez in Support of Sahara Bucios on the same day, but it remains that no revised applications for Appointment of Guardian Ad Litem have been filed, let alone approved for Claimants.

The Court cannot grant the Petitions until a guardian ad litem has been appointed on behalf of each Claimant. (Code Civ. Proc., § 372(a).) The Notices of Rejection explain the necessary corrections and the Court set a deadline for resubmission. In light of the lack of any appointed guardian ad litem for either Claimant, the Petitions cannot be granted at this time.

The Court repeats the corrections to be made with respect to the applications for guardian ad litem here. The issues concern the proposed order: (1) The box labeled "Ex Parte" must be checked; (2) Item 2 should be blank because hearings are not held on these applications; (2) Item 4 should be filled out and include the minor's date of birth.

Conclusion

Petitioner Maria Gutierrez's Petitions to Approve Compromise of Disputed Claim on behalf of Minor Claimants Merida Bucio and Sahara Bucio are denied.

Moving party to give notice.